NATIONAL COMPANY LAW TRIBUNAL
GUWAHATI BENCH
GUWAHATI

CP (CAA) No. 02/GB/2022
in CA (CAA) No. 10/GB/2021

Coram:
Hon'ble Shri Rohit Kapoor, Member (J): **Hearing through**
Hon'ble Shri Prasanta Kumar Mohanty, Member (T): **Video Conference**

ATTENDANCE-CUM- ORDER SHEET OF THE HEARING OF GUWAHATI BENCH OF THE NATIONAL COMPANY LAW TRIBUNAL ON 16.06.2022

Name of the Company:

Deepak Medical Pvt. Ltd.
And
Durable Retail Pvt. Ltd.
IHR Medical Services Pvt. Ltd.

Section: Under Section 230 – 232 of the Companies Act, 2013

S. NO.	NAME (CAPITAL LETTERS)	DESIGNATION	REPRESENTATION	SIGNATURE
1.	MR. R. K. AGARWAL	Advocate	Petitioners	Present in Video Conference

ORDER

The Applicant is represented through respective learned counsel(s).

The case is fixed for pronouncement of order.

The order is pronounced in the open court, vide separate sheet

Sd/- **Sd/-**

(**Prasanta Kumar Mohanty)**
Member (Technical)

(Rohit Kapoor)
Member (Judicial)

NATIONAL COMPANY LAW TRIBUNAL
GUWAHATI BENCH
GUWAHATI

CP (CAA) No. 02/GB/2022
in CA (CAA) No. 10/GB/2021

IN THE MATTER OF SCHEME OF AMALGAMATION

BETWEEN

Durable Retail Pvt. Ltd.

...Transferor Company No. 1

And

IHR Medical Services Pvt. Ltd.

... Transferor Company No. 2

With

Deepak Medical Pvt. Ltd.

...Transferee Company

SECTION 230-232 OF THE COMPANIES ACT, 2013

Order Delivered on: 16.06.2022

Coram:
SH. ROHIT KAPOOR, HON'BLE MEMBER (J)
SH. PRASANTA KUMAR MOHANTY, HON'BLE MEMBER (T)

O R D E R
[Per se: Hon'ble Shri Prasanta Kumar Mohanty, Member (T)]

1. This petition has been filed by the Petitioner Company under Sections 230 and 232 of the Companies Act, 2013 read with the Company (Compromises, Arrangements and Amalgamations) Rules, 2016 and the National Company Law Tribunal Rules, 2016, **for the purpose of approving the Scheme of Amalgamation, as contemplated between the Transferor Companies with Transferee Company.**

2. It is represented that the registered office of the Transferee Company is within the jurisdiction of this Tribunal.

3. A perusal of the petition discloses that the first motion application bearing CA (CAA) No. 10/GB/2021 was filed by the Petitioner. **Based on the averments made in the said application, the Tribunal vide order dated 31.08.2021 dispensed the meetings of the Shareholders, Secured creditors and Unsecured Creditors of the Applicant Companies.**

4. The petitioner company was directed to issue public notices and individual notices to the Regional Director, Eastern Region; Regional Director, NER; Registrar of Companies, West Bengal; Registrar of Companies, Guwahati; Official Liquidator, Kolkata; Official Liquidator, Guwahati and the Income Tax Authorities and the Assessment Officers of Income tax relating to both the Transferee Company and Transferor Companies. **An affidavit dated 11.03.2021 filed by the petitioner company affirming that the petitioner has effected publication in the English daily "The Assam Tribune" and Assamese daily newspapers "Dainik Asom" on 16.02.2022 inviting objections if any to the proposed Scheme of Amalgamation.**

5. The Petitioner further discloses that due notice of the proposed scheme had been served on the Regional Director, Eastern Region; Regional Director, NER; Registrar of Companies, West Bengal; Registrar of Companies, Guwahati; Official Liquidator, Kolkata; Official Liquidator, Guwahati and the Income Tax Authorities and the Assessment Officers of Income tax relating to both the Transferee Company and Transferor Companies. The same has been annexed herewith.

6. Pursuant to the Publication in the daily newspapers, for listing of the matter before this Bench, no objector has appeared before us.

7. The reply of the Regional Director, NER and Report of Official Liquidator, Guwahati have been filed and taken on record.

7.1 The Regional Director, NER in its report submitted that from the contents of the scheme, reply/clarifications received from the petitioner companies, it appears that the scheme is not in violation of 230/232 of the Companies Act, 2013.

7.2 The report of official liquidator has been filed vide affidavit dated 16.03.2022 stating that the said scheme is in no manner prejudicial to the interest of the members or to the public interest as per the provisions of the Companies Act, 2013.

8. The Income Tax department has not filed its reply. Be that as it may, in order to protect the interest of revenue, it is made clear that there shall be no impediment on the power and jurisdiction of the Income Tax Department in recovery of pending Income Tax dues, penalties etc., if any, as provided in the law.

9. The certificate of the statutory auditor of the petitioner company, certifying that the Accounting Treatment in the Scheme is in conformity with the Accounting Standards in terms of Section 133 of the Companies Act 2013, is on record.

10. During the last hearing of the matter on 19.05.2022, Learned Counsel for the Petitioners prayed for change in the appointed dated from 1.04.2020 to 01.04.2021. The counsel has submitted that they have earlier filed the appointed date as 01.04.2020 and but due to Covid-19 situation it was delayed. The Representative appearing for the RD, NER submits that he has no objection in changing the appointed date to 01.04.2021. The Petitioner was directed to file an Affidavit along with Board Resolutions adopted regarding the change of appointed date, within Ten days.

11. As per the direction of this tribunal vide order dated 19.05.2022, the Petitioner Companies have submitted an affidavit dated 30.05.2022 agreeing that the Appointed date be shifted from 1st April 2020 to 1st April 2021. The Board of Directors of the Petitioner Companies have passed the Resolutions agreeing to the shift of the Appointed date from 1st April 2020 to 1st April 2021 so far as to be in line with the circular issued by the Ministry of Corporate Affairs. Copies of the Board Resolutions dated 21.05.2022 of the petitioner Companies have been annexed.

ORDER

12. We have heard the counsels for the petitioners and also considered the representations made by the Regional Director, Northern Region. In the reply filed by the Regional Director (NER), it has been confirmed that the petitioner company is regular in filing their statutory returns. No prosecution has been filed, no complaints are pending and no inspection or investigation has been conducted in respect of the applicant companies as per the ROC Report dated 16.03.2022.

13. In view of the foregoing, upon considering the approval accorded by the members and creditors of the companies to the proposed Scheme, and no objections being raised by the office of the Regional Director there appears to be no impediment in granting sanction to the Scheme.

14. Consequently, the sanction is hereby granted to the Scheme under sections 230-232 of the Companies Act, 2013. The sanctioned Scheme of amalgamation shall be binding petitioner companies and on all their respective shareholders and creditors.

15. The Petitioner shall also be bound to comply with the statutory requirements in accordance with law. Notwithstanding the above, if there is any deficiency found or, violation committed qua any enactment, statutory

rule or regulation, the sanction granted by this court to the scheme will not come in the way of action being taken, albeit, in accordance with law, against the concerned persons, directors and officials of both the petitioner companies.

16. While approving the Scheme as above, we further clarify that this order should not be construed as an order in any way granting exemption from payment of stamp duty, Statutory dues or any other charges, if any, and payment in accordance with law or in respect to any permission/ compliance with any other requirement which may be specifically required under any law.

17. This tribunal further order that upon scheme of Amalgamation coming into effect:

17.1 The appointed date of amalgamation be **1st April, 2021;**

17.2 All benefits, entitlements, incentives and concessions under incentive schemes and policies that the Transferor Companies is entitled to including under Customs, Excise, Service Tax, VAT, Sales Tax, GST and Entry Tax and Income Tax laws, subsidy receivables from Government, grant from any governmental authorities, direct tax benefit/exemptions/deductions, shall, to the extent statutorily available and along with associated obligations, stand transferred to and be available to the Transferee Company as if the Transferee Company was originally entitled to all such benefits, entitlements, incentives and concessions;

17.3 All contracts of the Transferor Companies, which are subsisting or having effect immediately before the Effective Date, shall stand transferred to and vested in the Transferee Company and be in full force and effect in favor of the Transferee Company and may be enforced by or against it as fully and effectually as if, instead of the Transferor Companies, the Transferee Company had been a party or beneficiary or obliged thereto;

17.4 All the staff and employees of the Transferor Companies shall be deemed to have become the staff and employees of the Transferee Company with effect from the Appointed Date, and shall stand transferred to the Transferee Company without any interruption of service and on the terms and conditions no less favorable than those on which they are engaged by the Transferor Companies, as on the Effective Date, including in relation to the level of remuneration and contractual and statutory benefits, incentive plans, terminal benefits, gratuity plans, provident plans and any other retirement benefits;

17.5 All liabilities of the Transferor Companies, shall, pursuant to the provisions of section 232(4) and other applicable provisions of the Companies Act, 2013, to the extent they are outstanding as on the Effective Date, without any further act, instrument or deed stand transferred to and be deemed to be the debts, liabilities, contingent liabilities, duties and obligations etc. as the case may be, of the Transferee Company and shall be exercised by or against the Transferee Company, as if it had incurred such liabilities.

17.6 All proceedings now pending by or against the Transferor Companies be continued by or against the Transferee Company.

17.7 Any person interested or affected shall be at liberty to apply to this Tribunal in the above matter for any directions that may be necessary;

18. The legal fees and expenses of the office of the Official Liquidator, Guwahati is quantified at Rs 10,000/- (Rupees Ten Thousand only) in respect of the Petitioner Transferor Companies. The said fees to the Official Liquidator shall be paid by the Transferee Company within four weeks from the date of issuance of certified copy of the Order by the Tribunal.

19. The legal fees and expenses of the office of the Regional Director, NER and Eastern Region, Guwahati is quantified at Rs 20,000/- (Rupees Twenty Thousand Only) in respect of the Petitioner Companies. The said fees to the Regional Director shall be paid by the Transferee Company within four weeks from the date of issuance of certified copy of the Order by the Tribunal.

20. The petitioners shall within thirty days of the date of the receipt of this order cause a certified copy of this order to be delivered to the Registrar of Companies for registration and on such certified copy being so delivered, the Registrar of Companies shall place all documents relating to the transferor companies and registered with them and shall consolidate the files of the companies accordingly, duly approved and sanctioned in terms of the above.

21. Any person interested shall be at liberty to apply to the Tribunal in the above matter for any directions that may be necessary.

The petition stands disposed of in the above terms.

Let copy of the order be served to the parties.

Sd/-

(PRASANTA KUMAR MOHANTY)
MEMBER (T)

Sd/-

(ROHIT KAPOOR)
MEMBER (J)